

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201412675	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/25/2014 1:10 PM	Location of Incident: 41st Precinct stationhouse	18 Mo. SOL 12/25/2015	Precinct: 41		
Date/Time CV Reported Mon, 12/22/2014 4:22 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 12/22/2014 4:22 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POF Natalie Cotter	27369	938300	041 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POF Natalie Cotter	Abuse: PO Natalie Cotter strip-searched § 87(2)(b)	A . Unsubstantiated			

Case Summary

On June 25, 2014, at approximately 1:10 p.m., § 87(2)(b) was arrested for § 87(2)(b) at § 87(2)(b) in the Bronx by PO Natalie Cotter. § 87(2)(b) was transported to the 41st Precinct stationhouse. As she stood at the front desk, PO Cotter allegedly told § 87(2)(b) that she was going to “check her butt.” PO Cotter then brought § 87(2)(b) to the bathroom and allegedly performed a strip-search (**Allegation A**).

§ 87(2)(b) also alleged that PO Cotter performed a cavity search. § 87(2)(g)

Mediation, Civil, and Criminal Histories

On March 5, 2015, a Notice of Claim was requested from the Office of the New York City Comptroller. The results will be added to the case file upon receipt. [encl. H5-H6]

This case was ineligible for mediation due to § 87(2)(b)'s arrest.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [encl. A2]

PO Cotter has been a member of the service for nine years and has had two CCRB cases with no substantiated allegations. A strip-search was also alleged in case 201500720. [encl. A1] This case is still pending.

Investigative Findings and Recommendations

- **Allegation A) Abuse of Authority: PO Natalie Cotter strip-searched § 87(2)(b) at the 41st Precinct stationhouse.**

§ 87(2)(b) testified that, pursuant to her arrest for § 87(2)(b), PO Cotter brought her to the front desk of the 41st Precinct stationhouse and told her that she was going to “check her butt.” PO Cotter did not speak with any other officers before taking § 87(2)(b) to a bathroom. § 87(2)(b) was still in handcuffs when PO Cotter put on latex gloves and allegedly removed § 87(2)(b)'s pants and underwear. PO Cotter allegedly told § 87(2)(b) to squat, and PO Cotter put her fingers in § 87(2)(b)'s rectum. PO Cotter did not recover any contraband during the strip-search. [encl. C1-C9]

PO Cotter, who was § 87(2)(b)'s arresting officer, testified that she observed the drug transaction for which § 87(2)(b) was arrested but denied taking part in her apprehension or escorting her back to the 41st Precinct stationhouse. She stated that she did not suspect § 87(2)(b) to be secreting contraband. PO Cotter searched § 87(2)(b) for property and weapons at the front desk of the 41st Precinct stationhouse. She then placed § 87(2)(b) into a cell. PO Cotter did not request a strip-search from the desk sergeant, and she did not take § 87(2)(b) to a bathroom within the stationhouse. PO Cotter did not remove any of § 87(2)(b)'s clothing, and she did not ask § 87(2)(b) to do so herself. PO Cotter did not touch § 87(2)(b) underneath her clothing at any point. PO Cotter did not perform any strip-searches on the date of the incident, and she did not learn of any other officer having strip-searched § 87(2)(b). PO Cotter did not know of § 87(2)(b) having a history of secreting drugs. [encl. D1-D18]

There was no notation on the command log for the date of the incident that any strip-searched were performed. § 87(2)(b)'s arrest report states that a strip-search was not performed. [encl. D7-D9, E4-E14]

PO Cotter acknowledged searching § 87(2)(b) at the stationhouse's front desk. § 87(2)(g) PO Cotter is a SNEU (Street Narcotics Enforcement Unit) police officer, and she arrested § 87(2)(b) for § 87(2)(b). However, the property voucher that PO Cotter prepared for § 87(2)(b) does not indicate that any narcotics were recovered from § 87(2)(b)'s person. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date